

Below August 2005 legal costs for proposed NPDC Dow confidentiality agreement

TAX INVOICE

New Plymouth District Council
Private Bag 2025
NEW PLYMOUTH



Simpson
Grierson

July 29, 2005
Account Reference 315243-1520876
Tax Invoice No. 310117
G.S.T. Reg No. 48-371-809
Ref. JGW

For: Gareth Green

ASSM: 005983 - Dow Agrosiences

To: our costs to 28 July 2005 of telephone discussions with Gareth Green regarding proposed confidentiality agreement, consider and review draft Burden confidentiality agreement, provide email advice to Gareth Green regarding legal issues for the Council and risks, subsequent emails and telephone advice to Gareth Green, and all incidental attendances.

NPDC 27.1. 2004 reply to 5.9.2003 request for info on 1946 on agrichemical stormwater discharges

As I have verbally informed Mr [redacted], the investigation into your request for information regarding stormwater discharges would be very limited in its scope as the Taranaki Regional Council has responsibility for this matter. At present there are four volumes related directly to trade waste readily available which may contain information that you require. To find further historical information would require a significant amount of time.

The research of this information by Council officers will incur a charge based on their time spent researching plus any subsidiary costs such as photocopying which is based on 15c for each page after the first 20 pages. The charge-out rate is based on an initial charge of \$30 for the first chargeable half hour or part thereof and \$30 for each additional half hour. A deposit of \$60 shall be paid in advance of instigating the investigation.

Prior to any investigation being undertaken the council would require a commitment that you are willing to pay these costs. It has been estimated that the cost could be in the region of \$3,000 - \$5,000

File retrieved from National Archives in Wellington on IWD discharges to NPDC sewers 12 October 1978

Note after IWD treatment started and still request phenol fumes reduction for safety of NPDC workers

Flows - You have stated in your letter dated 1 August, 1977 that further measurements will be taken and that the various flows will be confirmed. It will be appreciated if this information is sent.

Quality - The results of "sampling" are presumably now available and hence please inform the chemical and other aspects of the discharges - my letter dated 24 June, 1977, refers. Your comments on the corrosive effects of the discharge on concrete, asbestos cement and steel sewer pipes are requested. What is the usual pH value (and the range of pH values) of the discharge? Information re the quantity (mg/l) of phenols in the discharge and its toxic effects on aquatic life is also requested. Our drainage crews have had to stop work on sewers in the Moturoa area on a number of occasions due to the discomfort caused by the odours from I.W.D. discharges. Can the phenol fumes emanating from I.W.D. discharges at all times be brought down to safe levels for workmen?

Yours faithfully,

N.G. Harris.

File retrieved from National Archives in Wellington of IWD discharges to NPDC sewers 26 October 1978

Cites 265 ppm of phenols (after IWD treatment started) and 11,676 kg of total dissolved solids per day

Flows

IWD has 2 points of discharge into the city sewer system.
Flow measurements have revealed the following figures -

	<u>Northern Point</u>	<u>Southern Point</u>
Daily average flow	110,000 litres	420,000 litres
Max daily flow 24 hours	110,000 litres	650,000 litres
Max hourly flow and time	5.0 litres/sec. occurs twice/week anytime Mon-Fri between 7am-5pm for ½ hour.	12.0 litres/sec occurs Mon-Fri anytime between 7am-5pm.
Max flow in any continuous period of 4 hours	7,000 litres	125,000 litres
Max batch discharge	6,900 litres for ½ hour	16,400 litres for 20 minutes

Quality

Results of effluent analysis are as follows -

<u>Southern discharge</u>	<u>Mean (mg/l)</u>
Phenol	265
Suspended solids	115
Total Dissolved Solids	27,800
pH	7.0 - 12.5
<u>Northern discharge</u>	<u>Mean (mg/l)</u>
Total Dissolved Solids	730
pH	6.5 - 9.5